

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

WORLDWIDE NEXUS LOGISTICS, LLC, *Complainant*

v.

WALLENIOUS WILHELMSEN, *Respondent*.

DOCKET NO. 25-15

Served: September 11, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

SCHEDULING ORDER

On September 9, 2025, the parties filed a joint status report and proposed discovery schedule. (Dkt. 10.) The parties state that they have met and conferred with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS). The parties are reminded *not* to state the parties' positions on whether to agree to mediation or their settlement positions in communication with the undersigned.

In the answer, Respondent requested an oral hearing. The complaint was silent as to whether an oral hearing is requested, but the joint proposed scheduling order contemplates that both a pre-hearing conference and a hearing will be conducted. Pursuant to Commission Rules 62(a)(5) and 62(b)(3), the "presiding officer will determine whether an oral hearing is necessary." 46 C.F.R. § 502.62(a)(5), (b)(3). At this point in the proceeding, it is not clear that either a pre-hearing conference or an oral hearing is necessary. Accordingly, Respondent's request for an oral hearing is **DENIED WITHOUT PREJUDICE**.

The discovery schedule proposed by the parties is reasonable and substantially adopted with minor adjustments to account for the premature request for oral hearing, to remove the reference to the initial decision deadline already established by the Notice of Filing Complaint and Assignment (Dkt. 3), and to add a briefing schedule. Pursuant to 46 C.F.R. § 502.141(g), discovery must be completed within 150 days of the service of the answer on August 25, 2025, that is no later than January 22, 2026. (Dkt. 9.)

The parties are hereby **ORDERED** to follow this schedule:

September 16, 2025 Service of initial disclosures

October 23, 2025 Service of written discovery requests

November 24, 2025 Disclosure of Complainant's expert reports, if any

December 9, 2025	Disclosure of Respondent’s rebuttal expert reports, if any
January 22, 2026	Close of all discovery
February 19, 2026	Complainant’s brief, proposed findings of fact, and appendix
March 19, 2026	Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
April 2, 2026	Complainant’s reply brief and responses to proposed findings of fact

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Parties must follow the instructions in the Initial Order, including but not limited to the requirements for briefs, appendices, and confidential information.

Any filing submitted without page numbers, including exhibits, may be rejected. Parties may be required to refile any documents that do not comply with the requirements in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email an electronic copy of required documents in a word-processing format to

the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

MARY A.
HERVEY -S

 Digitally signed by MARY A.
HERVEY -S
Date: 2025.09.11 12:17:53
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Mary Apostolakos Hervey
Administrative Law Judge